



EVL1 — Introduction to Evidence and Proof

Module 8 — Corroboration

Lesson 3: Sexual Offences, Children's Evidence & Current Position

Student Lesson Notes

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CORROBORATION IN SEXUAL OFFENCE CASES

The Historical Position

Historically, Ugandan courts were required to give a mandatory corroboration warning in all sexual offence cases — warning themselves of the danger of convicting on the uncorroborated evidence of a sexual offence complainant. Failure to give this warning could result in the conviction being quashed on appeal.

This approach was based on stereotyped concerns about sexual offence complainants that have since been widely criticised as reflecting outdated and unfair assumptions — treating sexual offence complainants as a uniquely unreliable category of witness without legitimate evidential basis.

The Modern Position in Uganda

The law has evolved significantly. A complainant in a sexual offence case is no longer automatically treated as a categorically unreliable witness requiring a mandatory warning merely because of the nature of the offence alleged. A conviction in a sexual offence case can be based on the complainant's testimony alone if the court is satisfied of its truth and reliability after careful consideration of all the circumstances.

MODERN UGANDA POSITION: Courts still approach sole-complainant sexual offence cases with care — examining consistency, demeanour, presence or absence of corroborating detail, and any motive for false complaint. But the mandatory corroboration warning has been modified.

Corroborating Evidence That Remains Practically Important

- Medical evidence of physical injuries consistent with the alleged act — important supporting evidence even if not automatically Baskerville corroboration.
- Communications between the accused and complainant inconsistent with the accused's account.
- Evidence of the accused's presence at the relevant location and time.
- DNA evidence connecting the accused to the complainant in the specific circumstances alleged — satisfies all three Baskerville requirements.

CHILDREN'S EVIDENCE AND CORROBORATION

Two Forms of Children's Evidence in Uganda

Sworn Evidence: Where the court is satisfied the child understands the nature of an oath and the duty to tell the truth — received on oath, carries the same weight as sworn adult testimony.

Unsworn Evidence: Where the court is not satisfied the child understands the oath but believes the child is of sufficient intelligence and understands the duty to speak the truth — received without oath. The child is told they must tell the truth.

Corroboration of Children's Evidence

The traditional rule was that unsworn evidence of a child required corroboration before a conviction could safely be entered. The court could not act on the unsworn testimony of a child alone.

The modern position has evolved. The mandatory corroboration requirement has been modified. A court convinced of the reliability and truthfulness of a child's evidence may act on it without formal corroboration, provided it has considered the question carefully and explained its reasoning in the judgment.

In practice, corroborating evidence of children's testimony remains very important — medical evidence, forensic evidence, records of the child's immediate complaint, and other independent evidence are all relevant.

Children Act Cap. 62: Governs the treatment of children in legal proceedings and provides various protections for child witnesses in Uganda.

Protective Measures for Child Witnesses

- Examination with sensitivity appropriate to the child's age.
- In appropriate cases, screens may be used to prevent the child from directly facing the accused.
- In sexual offence cases involving children, provisions exist to protect the child's identity and to conduct proceedings sensitively.

These protective measures do not change the evidential requirements — the court must still be satisfied of the child's competence and the reliability of their evidence. But they create an environment in which children can give their best evidence.

CURRENT POSITION IN UGANDAN COURTS

Where Mandatory Corroboration Survives as a Legal Requirement

Mandatory corroboration as an absolute legal requirement is limited in scope in Uganda today. The clearest remaining area is certain aspects of confessions and extrajudicial statements where the procedural safeguards established in *Uganda v Doyi Wabwire Kyoyo* (1976) HCB 212 must be satisfied before the court can act on them.

Where the Judicial Warning Approach Applies

- Accomplice evidence: judicial warning required — court may convict after genuine warning if satisfied of reliability.
- Sexual offence complainant evidence: mandatory warning modified to judicial warning approach — conviction possible on sole testimony if reliable.
- Children's unsworn evidence: judicial warning approach — court may act on reliable evidence after genuine assessment.

The Continuing Importance of Corroboration in Practice

Even where the mandatory requirement has been modified, corroboration remains critically important in Ugandan criminal practice. A prosecution with corroborating evidence is significantly stronger. A defence that can demonstrate the absence of Baskerville corroboration has a powerful argument on appeal.

Ntambala v Uganda *Criminal Appeal No. 34 of 2015* — Trial courts must genuinely engage with corroboration questions — not merely recite formulas. Appellate courts will carefully scrutinise whether that genuine engagement occurred.

Uganda v Ntambazi [1996] HCB 29 — Fair identification parade procedures must be followed. Where they are not, identification evidence is significantly weakened and more cogent corroboration is required.

Summary — Current Ugandan Position

- Mandatory corroboration as absolute legal requirement: survives mainly for certain confession and extrajudicial statement situations.
- Accomplice evidence, sexual offence complainants, children's unsworn evidence: judicial warning approach.
- Corroboration remains critically important in practice even where the mandatory requirement is modified.
- *Ntambala v Uganda* CA No. 34 of 2015: genuine engagement required, not formulaic warnings.

- *Uganda v Ntambazi* [1996] HCB 29: fair parade procedures required — failure weakens evidence.

LESSON SUMMARY — KEY POINTS

- ✓ Sexual offence cases: historical mandatory corroboration warning has been modified in Uganda — conviction now possible on sole complainant testimony if court satisfied of reliability
- ✓ Courts still approach sole-complainant cases with care — examining consistency, demeanour, and motive for false complaint
- ✓ Children's evidence: sworn (child understands oath) or unsworn (child understands duty to tell truth)
- ✓ Traditional rule: unsworn children's evidence required corroboration — now modified to judicial warning approach
- ✓ Children Act Cap. 62 provides protective provisions for child witnesses
- ✓ Current mandatory corroboration requirement: mainly confession and extrajudicial statement situations (*Uganda v Doyi Wabwire Kyoyo* (1976) HCB 212)
- ✓ Accomplice evidence, sexual offence complainants, children's evidence: judicial warning approach under *Ntambala v Uganda* CA No. 34 of 2015
- ✓ Corroboration remains critically important in practice even where mandatory requirement is modified

SELF-TEST QUESTIONS

Attempt these before checking the platform practice quiz.

1. What was the historical position on corroboration in sexual offence cases in Uganda and why has it changed?
2. Under the modern Ugandan position, can a court convict in a sexual offence case based on the complainant's testimony alone?
3. What is the difference between sworn and unsworn evidence of a child in a Ugandan court?
4. State the current Ugandan position on corroboration for each of these three categories: accomplice evidence, sexual offence complainant evidence, and children's unsworn evidence.
5. Where does mandatory corroboration as an absolute legal requirement most clearly survive in Uganda today?